

Code of Civil Procedure: Supreme Court Important Judgements of 2024

1. Order 8 Rule 10 CPC: Suit Can't Be Decreed Merely On Defendant's Failure To File Written Statement If Plaintiff's Case Isn't Proved

Case Title: ASMA LATEEF & ANR. V. SHABBIR AHMAD & ORS.,

Citation: 2024 LiveLaw (SC) 39

The Supreme Court held that a Court cannot pronounce judgment in a suit merely on the default of the defendant to file a written statement if the plaintiff doesn't prove his case. The Court observed that the failure on the part of the defendant to file the written statement within the time permitted by the court would not tantamount to pronouncement of judgment against the defendant, when it is incumbent upon the plaintiff to prove the case by adducing evidence.

2. Order 6 Rule 17 CPC: Amendment Of Plaintiff Shouldn't Be Allowed If It Alters Nature Of Suit

Case Details: BASAVARAJ VERSUS INDIRA AND OTHERS

Citation: 2024 LiveLaw (SC) 178

The Supreme Court held that an application seeking amendment of plaintiff shouldn't be allowed under Order 6 Rule 17 of CPC if the amendment alters the nature of the suit. In this case, an amendment of the plaintiff in a partition suit was sought to include a prayer to declare an earlier compromise decree void. The Court disallowed the application, stating that the amendment altered the nature of the partition suit to a declaration suit.

3. Order 23 Rule 3 CPC: Only Remedy Against Compromise Decree Is Recall Application Before Court Which Recorded Compromise

Case Title: NAVRATAN LAL SHARMA VERSUS RADHA MOHAN SHARMA & ORS.,

Citation: 2024 LiveLaw (SC) 985

The Supreme Court ruled that if the compromise entered between the parties was not adhered to, there is no bar to filing a recall application seeking restoration of the proceedings under Order 23 Rule 3 of the Code of Civil Procedure, 1908 ("CPC"). The Court emphasized that the validity and legality of a compromise agreement can be challenged even after a decree is passed. The Court rejected the argument that recording the compromise does not grant liberty to restore the appeal. Instead, it said that the right to file a restoration application is a statutory right under the CPC which cannot be curtailed merely because the compromise doesn't grant liberty to restore the appeal.

4. Pendente Lite Transferee Being Stranger To Suit Can File Application Under Order XXI Rule 99 CPC Against Dispossession

Case Title: RENJITH K.G. & OTHERS VERSUS SHEEBA

Citation: 2024 LiveLaw (SC) 798

The Supreme Court observed that a pendente lite transferee, being a stranger to the suit, can file an application under Order 21 Rule 99 of Code of Civil Procedure, 1908 ("CPC") against dispossession from the suit property. Order XXI Rule 99 CPC comes to the rescue of the person

who being a stranger to the suit was dispossessed by the decree holder upon the execution of the decree.

5. Suit For Specific Performance Of Agreement To Sell To Be Filed In Court Having Jurisdiction Over Property

Case Title: *ROHIT KOCHHAR Vs. VIPUL INFRASTRUCTURE DEVELOPERS LTD. & ORS.*,
Citation: 2024 LiveLaw (SC) 951

The Supreme Court held that a suit for specific performance of an agreement to sell must be instituted in the Court within whose local jurisdiction the property -which is the subject of the agreement- was situated as per Section 16 of the Code of Civil Procedure, 1908. The Court rejected the argument that a specific performance decree can be enforced by the personal obedience of the defendant and hence such a suit was maintainable at the place where the defendant resided/carried out business in terms of the proviso to Section 16 CPC.

6. Appellate Court Can't Create New Case For Parties & Frame Issues Without Following Order XLI : Supreme Court

Case Title: *RAMA KT. BARMAN (DIED) THR. LRS. VERSUS MD. MAHIM ALI & ORS.*,
Citation: 2024 LiveLaw (SC) 637

Recently, the Supreme Court held that the Courts at the Appellate stage of civil suits cannot create a new case for the parties while framing such additional issues that were never raised in the pleadings of the parties. Apart from the already subsisting substantial questions of law, the High Court in a second appeal had framed four additional substantial questions of law. However, none of the additional issues formulated by the High Court were raised before the trial court or the appellate court and none of the parties was given any opportunity to lead the evidence on the said issues. Deploring such practice, the Court deemed it appropriate to set aside the impugned judgment and decree passed by the High Court in the Second Appeal and remand the same to the High Court for deciding the same afresh and in accordance with law.

7. Can A Person, Awarded Monetary Compensation But Has Not Received It, File Appeal As Indigent?

Case Title: *ALIFIYA HUSENBHAI KESHARIYA v. SIDDIQ ISMAIL SINDHI & ORS.*,
Citation: 2024 LiveLaw (SC) 414

The Court observed that even though the original claimant/ appellant was awarded money, no money was paid to her, she could still file an appeal as an indigent person.

8. Subsequent Suit For Rent Arrears Maintainable After Suit For Possession; Both Different Causes Of Action

Case Details: *UNIWORLD LOGISTICS PVT LTD VS. INDEV LOGISTICS PVT LTD.*,
Citation: 2024 LiveLaw (SC) 469

Observing that the suit for recovery of possession is different from the suit for arrears of rent and damages, the Supreme Court held that there's no bar to file a separate suit for arrears of rent and damages after a suit for possession. The Court said a second suit filed on a different cause of action would not be barred under Order 2 Rule 2 of the Code of Civil Procedure.

9. S.144 CPC: Stranger Who Purchased Property Knowing About Appeal Pendency Can't Resist Restitution As Bona Fide Purchaser

Case Title: BHIKCHAND S/O DHONDIRAM MUTHA (DECEASED) THROUGH LRS. VERSUS SHAMABAI DHANRAJ GUGALE (DECEASED) THROUGH LRS.

Citation: 2024 LiveLaw (SC) 375

In an important ruling concerning the principle of 'restitution' under Section 144 of the Code of Civil Procedure, 1908 ("CPC") the Supreme Court observed that if after knowing that the decree was likely to be reversed, a stranger auction purchaser (not being party to the proceedings) purchases the property in execution of the decree, then he couldn't claim the protection of being a bona fide purchaser and the principle of restitution would apply in such circumstances. The Court observed that if the person who has purchased the suit property from the decree-holder despite having full knowledge of pending appeal proceedings against the decree, then the purchaser of the suit property from the decree-holder is not entitled to object restitution on the ground that he is a bona fide purchaser.

10. When Defendant Can Be Asked To Begin Evidence In Suit?: Order XVIII Rule 1 CPC

Case: Jami Venkata Suryaprabha and another v. Tarini Prasad Nayak and another,

Citation: 2024 LiveLaw (SC) 1015

In a recent judgment, the Supreme Court explained the circumstances under which a defendant gets the right to begin in a suit hearing as per Order XVIII Rule 1 of the Civil Procedure Code. As per the CPC, the plaintiff has the right to begin. However, if the defendant admits the facts alleged by the plaintiff and argues that plaintiff is not entitled to relief due to certain additional fact or any point of law, then the defendant gets the right to begin.

11. Order XII Rule 6 CPC: Judgment Can't Be Delivered Based On Unclear, Ambiguous & Conditional Admissions

Case Title: RAJESH MITRA @RAJESH KUMAR MITRA & ANR. VERSUS KARNANI PROPERTIES LTD.

Citation: 2024 LiveLaw (SC) 790

Recently, the Supreme Court observed that as per Order XII Rule 6 of the Civil Procedure Code, 1908 ("C.P.C."), a judgment can't be delivered based on an unclear and ambiguous admission. According to the court, when the testimony supplied in an admission contains both mixed questions of fact and law then such an admission against the law can never be an "admission" as visualized under Order XII Rule 6.

12. 'Henderson Doctrine' : Re-Litigation of Issues That Could Have Been Raised Earlier Is Barred

Case Title: CELIR LLP VERSUS MR. SUMATI PRASAD BAFNA & ORS.,

Citation: 2024 LiveLaw (SC) 991

In a recent case, the Supreme Court explained Henderson doctrine, a natural corollary of the Indian doctrine of constructive Res-judicata codified in Explanation IV of Section 11 of the Code of Civil Procedure (CPC). Propounded in the English case of Henderson versus

Henderson, 1843, the doctrine suggests that all the issues arising in the litigation out of the same subject matter must be addressed in a single suit. The doctrine bars re-litigating issues that could or should have been raised in prior proceedings.

13. Order 41 Rule 31 CPC: Omission To Separately Frame Issues Not Fatal If Appellate Court Has Otherwise Dealt With Them

Case Title: Mrugendra Indravadan Mehta and Others Versus Ahmedabad Municipal Corporation,

Citation: 2024 LiveLaw (SC) 369

The Supreme Court held that an omission to frame points of determination by the first appellate court as per Order 41 Rule 31 of the Code of Civil Procedure, 1908 (“CPC”) would not prove fatal as long as that first appellate court dealt with all the issues that arise for deliberation in the said appeal.

14. Not Necessary To File Separate Application For Delay Condonation Along With Application To Set Aside Ex-Parte Decree

Case Title: DWARIKA PRASAD (D) THR. LRs. VERSUS PRITHVI RAJ SINGH,

Citation: 2024 LiveLaw (SC) 1037

The Supreme Court ruled that a separate application seeking condonation of delay is not necessary to be filed along with an application seeking to set aside an ex-parte decree under Order IX Rule 13 of the Civil Procedure Code, if the application sufficiently explains the delay. Observing that the restoration application contains all the ingredients of delay condonation application as held in Bhagmal and Ors Vs. Kunwar Lal and Others (2010), thus the court held that no separate application for condoning the delay that occurred in filing the restoration application was required under the Limitation Act.

15. Order VI Rule 17 CPC | Principles On Amendment Of Plaint

Case Title: DINESH GOYAL @ PAPPU VERSUS SUMAN AGARWAL (BINDAL) & ORS.,

Citation: 2024 LiveLaw (SC) 739

The Supreme Court observed that by way of an amendment to the plaint under Order VI Rule 17 of CPC, the plaintiff can introduce certain aspects that are necessary to determine the issues between the parties. In the plaint in the partition suit, the plaintiff had not questioned the validity of the Will, however after a year, via amendment application, the plaintiff had raised questions over the genuineness of the Will and contended that the determination of the genuineness of the Will is a necessary course of action to determine the succession based on the Will. Affirming the decision of the High Court, the Court said that without a determination of the question of Will and its genuineness, the partition of the Suit property would not be possible.

16. Order VII Rule 11 CPC - Where It's Glaring From Averments That Suit Is Hopelessly Time-Barred, Plaint Is To Be Rejected

Case Details: SHRI MUKUND BHAVAN TRUST AND ORS v. SHRIMANT CHHATRAPATI UDAYAN RAJE PRATAPSIKH MAHARAJ BHONSLE AND ANOTHER.

Citation: 2024 LiveLaw (SC) 1041

The Court held that as per the settled law when an application to reject the plaint is filed, the averments in the plaints and the documents annexed therewith alone are germane. In this regard, the Court observed: "The Court cannot look into the written statement or the documents filed by the defendants. The Civil Courts including this Court cannot go into the rival contentions at that stage."

17. Written Statement Must Have Para-Wise Reply To Plaint; Allegations Deemed To Be Admitted Unless Specifically Denied

Case Title: THANGAM AND ANOTHER VERSUS NAVAMANI AMMAL,

Citation: 2024 LiveLaw (SC) 188

The Supreme Court on Monday (March 4) observed that the failure of the defendant to give para wise reply against the claim made by the plaintiff would make the allegations made in the plaint as admitted against the defendant. After finding that there is no specific admission or denial by the appellant/defendant with reference to the allegation in different paras of the plaint, the Court observed that in the absence of a para-wise reply to the plaint, it becomes a roving inquiry for the Court to find out as to which line in some paragraph in the plaint is either admitted or denied in the written statement filed.

18. Inquiry About Mesne Profits Continuation Of Original Suit; Application For Such Inquiry Not Barred By Limitation.

Case Title: CHOUDAPPA & ANR. VERSUS CHOUDAPPA SINCE DECEASED BY LRS. & ORS.

Citation: 2024 LiveLaw (SC) 671

The Supreme Court permitted the decree-holder to file an application regarding the determination of mesne profits after almost 26 years of passing the decree. The Court said that filing an application as a reminder to the court to complete the inquiry into the determination of mesne profit cannot be said to be filing a fresh suit but a continuation of the suit and cannot be barred by limitation.